Taco Tell Terms of Service (TOS)

Effective Date: 10-27-2026
Version: 1.0

1. Introduction & Governing Law

This policy is governed by the laws, rules, and regulations of Utah, United States, and shall be subject to the most recent Taco Bell Employee Handbook as maintained through authorized corporate systems (e.g., Paycom). By accessing and using the “Taco Tell” application to manage employee communications, schedule updates, or SMS notifications, you (“User,” “Employee,” or “Manager”) agree to be bound by these Terms of Service. These terms govern your use of the service provided by the Vendor (“Taco Tell”).

2. Permitted Use

The Taco Tell application is designed and intended solely for:

- Sending SMS schedule updates, notifications, and alerts to authorized employees within a specific restaurant location.
- Managing employee contact information for internal business operations and verification purposes.

3. Prohibited Uses

1. **Harassment or Bullying:** The application shall never be used to bully, harass, manipulate, retaliate, or adversely affect employees or the employer in any way. Such use will result in immediate termination of service and potential reporting to management or law enforcement.
2. **Unauthorized Access:** Managers must only access the application using credentials provided by their employer/restaurant. Unauthorized access, sharing of credentials, or bypassing authentication controls is strictly prohibited.

4. Data Handling & Privacy

1. The application shall never be used to gather private, confidential, or non-public information about the company, its employees, or the employer outside of the scope of schedule management and verification.
2. Users agree not to use the application for any purpose other than authorized business communications regarding work schedules and notifications.

5. Security & Unauthorized Modifications

1. **Code Integrity:** The User or Employees shall not make any unauthorized changes to the application design, codebase, configuration, or database structure without the explicit written or verbal consent of the Vendor.
2. **Breach Reporting:** Any unauthorized data breaches, code modifications, suspicious activities, or security incidents detected within the application must be reported immediately to the Vendor at **(801) 953-5337** or via email at **beegyoshi9817@gmail.com**.

6. Bug Reports & Feature Requests

1. Users are encouraged to report bugs or suggest features to improve application functionality. All requests should be submitted to the Vendor at **beegyoshi9817@gmail.com**.
2. **Subject Line Requirement:** Emails must be subject with the exact text: *"Taco Tell User Story"*.
3. **Response Times:** Response times for bugfixes or feature requests are not guaranteed and will depend on current development capacity, maintenance windows, and priority queues.

7. Liability & Limitation of Liability

1. **General Disclaimer:** Taco Tell and the Vendor expressly disclaim all warranties, express or implied, including but not limited to merchantability, fitness for a particular purpose, and non-infringement. The application is provided "as-is."
2. **Limitation of Liability:** To the maximum extent permitted by applicable law, neither Taco Tell nor the Vendor shall be liable for any direct, indirect, incidental, special, or consequential damages arising from, out of, or in connection with the use or inability to use the application, SMS delivery failures, network latency, data inaccuracies, user error, or third-party service interruptions.
3. **Third-Party Delivery:** All SMS transmission relies on an external telecommunications provider (Twilio). The Vendor does not guarantee delivery speed, success rates, or platform uptime. Users are solely responsible for ensuring accurate phone numbers and authorized use of the application.
4. **Force Majeure:** Neither party shall be liable for failures caused by events beyond reasonable control, including but not limited to natural disasters, internet outages, regulatory changes, carrier maintenance, or acts of war.
5. **User Responsibility:** Users are responsible for verifying all contact information entered into the system. The Vendor assumes no liability for messages sent to incorrect numbers or unauthorized recipients.

8. Minor Employee Data Collection

1. Employees under the age of 18 may not have their phone numbers stored in the Taco Tell database unless the employing restaurant obtains explicit verbal or written consent from one of the employee's parents or legal guardians.
2. The Vendor requires sufficient physical proof of this consent exchange (e.g., signed parental release form, notarized documentation, or verified correspondence) before any minor's contact information may be added to the system. Failure to comply with this requirement will result in data removal and potential suspension of account privileges.

9. Compliance with Internal Policies

In addition to all rules listed in these Terms, users acknowledge that all regulations, conduct standards, and operational protocols outlined in the most recent Restaurant Employee Handbook (accessible via Paycom) shall apply. Violation of handbook policies may result in disciplinary action by management independent of this application's usage.

10. Administration, Succession & Leadership Transition

The Taco Tell application is designed to support the chain of command for schedule communications. In the event that a General Manager leaves the company while this policy remains active, the following succession protocol applies:

1. The policy automatically carries over to the new General Manager.
2. If no General Manager can succeed, authority transfers to the Assistant General Manager.
3. If no Assistant General Manager is available, authority transfers to the most experienced Shift Lead.
4. Subsequent shifts in command may follow to other Shift Leads, Team Trainers, or employees as appropriate for operational continuity and compliance with restaurant protocols.

11. Licensing, Pricing & Ownership Transfer

1. **Service Model:** While Taco Tell was originally built as a passion project for the Taco Bell Restaurant identifying as Store #033154 free of charge, licensed access is available to employers, employees, or third parties upon request.
2. **Business Purchase:** The minimum requested price for outright service acquisition is $675. This price is negotiable and subject to mutual agreement.
3. **Service Instances:** Additional instances may be purchased at a non-negotiable rate of $25 per month per instance, excluding the first setup instance which requires a mandatory joint onboarding process.

4. **Ownership Transfer:** Once ownership is transferred following a purchase transaction (regardless of price), the new owner may amend these Terms and Privacy Policy as they deem appropriate, provided such amendments are communicated to all users prior to implementation.

12. Intellectual Property

The application code, design, branding, database architecture, and any proprietary algorithms developed by the Vendor remain the sole intellectual property of the Vendor. This license grants you a limited, non-exclusive right to use the application strictly for schedule communications under the terms herein. Unauthorized reproduction, reverse engineering, or distribution is prohibited.

13. Termination & Dispute Resolution

Either party may terminate this agreement at any time by providing written notice to the Vendor. Upon termination, access to the application will be revoked, and users must immediately cease use and delete any confidential data processed outside of standard operational needs. Any disputes arising from these Terms shall be resolved exclusively under Utah law, in state or federal courts located in Utah.

Taco Tell Privacy Policy

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1. Introduction

Taco Tell is committed to protecting your personal information and communicating transparently about how we collect, use, and safeguard the data associated with your account and communications within our application.

2. Information Collected

We collect only the minimum amount of data necessary to provide schedule updates and verify user identities:

1. **Phone Numbers:** Cell phone numbers stored securely in our local database solely for SMS delivery.
2. **Names & IDs:** First names, last names, and Employee ID numbers used exclusively for verification purposes and to identify the authorized owner of each stored phone number.

3. Purpose of Collection

Data is collected exclusively for: • Delivering scheduled SMS updates regarding shifts, breaks, or changes. • Verifying that schedule updates are being sent to authorized employees within a restaurant location. • Ensuring data integrity and preventing unauthorized access attempts.

4. Third-Party Processing (SMS Provider)

To deliver SMS messages, we utilize an external telecommunications service provider (Twilio). Your phone number may be transmitted to this provider solely for the purpose of delivering your message. We do not store your number in any third-party database beyond the transmission event. You agree that standard telecom carriers and regulatory bodies may process and route your number during delivery as required by industry standards.

5. Sharing & Disclosure Restrictions

1. **No Marketing:** The phone numbers of all employees stored in the database will never be used for marketing, advertising, data aggregation, or any purpose other than what is explicitly listed in the app description and internal business communications.
2. **No Sale or Posting:** Employee phone numbers will never be sold, traded, posted online, shared with competitors, disclosed to third parties, or used for analytics without explicit consent.
3. **Employer Number Usage:** The Employer's phone number (if stored) will only be used to provide employees with a direct channel to contact them regarding schedule change information and internal coordination. It will never be used for marketing, sold, posted online, or shared externally.
4. **Vendor Contact Information:** The Vendor's phone number and contact information will never be used within the application itself for any reason.
    - *Exception:* In the event that ownership of this policy and service is transferred to a third party following the purchase transaction described in Section 11 of the TOS, the new owner may use the Vendor's contact information solely for administrative purposes during the transition period, strictly pursuant to agreed-upon terms.

6. Security Measures

While no system is completely secure, we employ standard industry practices to protect your data: • Data is stored securely within the application environment designated by the authorized owner. • Access controls and verification protocols are in place to ensure only authorized users can view or modify sensitive contact information and schedule configurations.

7. Data Retention & Deletion

Phone numbers and associated data will be retained for as long as necessary to support active schedules, notifications, and operational continuity. Upon account deactivation, termination of service, or user request, data is securely removed from the system in accordance with our security protocols.

8. Your Rights & Account Management

You have the right to update your phone number if necessary through authorized channels managed by your restaurant administrator. If you believe your information has been mishandled, improperly shared, or stored without authorization, please contact the Vendor directly at **beegyoshi9817@gmail.com**.